To: DesignR Management Team
Cc:
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Concerns Regarding Indigenous AI Generated Images

I would like to raise a concern about Indigenous inspired images I have been generating using Meta AI. I understand that commissions have been slower than usual, and that we've been looking for ways to take advantage of our time and resources. However, after examining the images I've produced, I believe we should not continue with the project in its current form.

A primary issue with the project is how images are generated. Images often contain rarrk crosshatching and dot patterns that resemble styles of Aboriginal and Torres Strait Islander communities and artists. Our decision to use AI was primarily because we lacked the cultural knowledge to create such work ourselves, but it is evident it did not solve our problem. There is therefore a risk that we have been reproducing the work of Indigenous artists indirectly through a model trained on approximately 1.1 billion public Instagram and Facebook images (Edwards, 2023). In addition, the independent news outlet Crikey has documented AI generated Indigenous images appearing on commercial stock websites alongside the work of artists whose styles they resemble (Wilson, 2024).

It is important to note that copyright law does not provide protection against such replication. While it does protect individual works, it does not protect a style or recognise communal ownership in the way Indigenous Cultural and Intellectual Property (ICIP) principles do. This is a known limitation in Australian law, and one the Productivity Commission has recommended be addressed (Arts Law Centre of Australia, 2011; Productivity Commission, 2022).

I am also concerned that we do not address ethical issues with our products. The AIATSIS Code of Ethics mentions the importance of Indigenous leadership, accountability and benefit, whereas the Australia Council places emphasis on consent, interpretation, attribution and the sharing of benefits. Currently, no Aboriginal or Torres Strait Islander person has been involved in our creative decision-making process or in determining how our products are represented. Even if a donation were to be made to support Indigenous communities, it would not address questions of consent, attribution or fair benefit for the artists and communities whose cultural material may be represented in the images. There is also a risk that our clients could alter or reuse the images in ways we have no control over once they have been licensed.

Beyond the ethical concerns, I also think continuing with this project could create significant risks for DesignR's reputation and relationships with our clients. The Productivity Commission found extensive problems with unauthentic Indigenous products and stock imagery, including artists receiving very little of the resulting commercial value (Productivity Commission, 2022). Extending the market with our own products could contribute to the same problem. More importantly, government and non-government clients are increasingly considering cultural safety when commissioning creative work, which may cause our relations to be degraded and our revenue to diminish. Furthermore, the ACS Code of Professional Ethics expects us to respect intellectual property and minimise harm to cultural groups (ACS, 2023).

I suggest that we suspend further commissions and temporarily remove our existing images while they undergo review. As an alternative, we could commission Aboriginal and Torres Strait Islander artists through Indigenous Art Code members and community art centres, using royalties to replace our existing donation system. We should also integrate an ICIP review into our project planning process, require appropriate consent before production, restrict the use of generative AI, and recruit a paid Indigenous cultural adviser to help ensure our products are culturally appropriate.

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